IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No401

CA(CAA)/36(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Sarabhai Chemicals (India) Pvt. Ltd (Demerged Co.) **.....Applicant**

Asence Pharma Pvt Ltd (Resulting Co.) **.....Respondent**

Order delivered on 03/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Dharmishtha Raval, Adv.
For the Respondent :

ORDER

Following clarifications are sought:

1. The applicant companies had not disclosed with respect to applicability / information relating to CCI, RBI, Foreign Shareholder as required under the provisions and there is no declaration that no winding up proceedings are pending against the applicant companies.
2. There are seven equity shareholders in the applicant company no.1. Regarding shareholder – Ambalal Sarabhai Enterprises Limited, the minutes of meeting of the board of directors signed by the CS is available at 367 to 373 but the copy of the minutes of meeting of board signed by director is not available.
3. For applicant company no.1, consent affidavits of equity shareholders are available at page no.267 to 284, but their ID proofs are not available. (CA certificate is available at 285.

Learned Counsel Ms. Dharmishtha Raval appears for the petitioner companies. She undertakes to provide the clarification in details within 7 days'.

List for hearing on 17.07.2023

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

Prakash - Steno